



Retirement of Teachers (Scotland) Act 1976

1976 CHAPTER 65

An Act to make further provision as regards Scotland with respect to the age of retirement of teachers.

[15th November 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Age of
retirement of
teachers.

1. The following section shall be substituted for section 16 of the Education (Scotland) Act 1969:—

"Age of
retirement
of teachers.

16.—(1) Subject to subsection (2) below, a teacher employed by an education authority or by the managers of a grant-aided school shall retire from the post in which he is employed—

(a) in the case of a teacher the sixty-fifth anniversary of whose birth is after 1st March 1977, no later than the date of his attaining the age of 65;

(b) in any other case, no later than 1st March 1977.

(2) Nothing in subsection (1) above shall preclude the re-employment by the education authority or, as the case may be, the managers of the grant-aided school, if and in so far as they consider it appropriate, of—

(a) a retired teacher in a post other than a post of special responsibility, either full-time or part-time and for a period not exceeding one year in respect of any one re-employment;

(b) (without prejudice to paragraph (a) above), a retired teacher who immediately before his retirement held a post of special responsibility, in that post for a period not exceeding three months from the date of his retirement.

(3) In subsection (2) above, "post of special responsibility" shall be construed in accordance with the memorandum referred to in an order made by the Secretary of State under section 2(4) of the Remuneration of Teachers (Scotland) Act 1967 and for the time being in force."

2.—(1) This Act may be cited as the Retirement of Teachers (Scotland) Act 1976. Citation, commencement and extent.

(2) Section 1 of this Act shall come into force on 1st March 1977.

(3) This Act shall extend to Scotland only.